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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S OMNIBUS SUPPL. P&A —
BLACK-LETTER CONTRADICTIONS
(MULTI-MOTION DOCKET)**

(Cal. Rules of Court, rules 3.1113, 3.1306(c); supplemental only;
cross-noticed hearings on caption.)

**Cross-noticed for pending defense hearings (this case, Dept.
301):**

#	Motion	Date / dept / judge
(1)	MFL / leave (SAC)	Apr. 30, 2026
(2)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:30 a.m. ; Dept. 301; Hon. Christine Van Aken
(3)	Strike (Code Civ. Proc., § 436)	May 22, 2026 ; Dept. 301; Hon. Christine Van Aken
(4)	Demurrer	Hrng. date [TBD] (reserved)

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

I. INTRODUCTION AND VEHICLE

This omnibus supplemental memorandum is submitted under Cal. Rules of Court, rule 3.1113 and Cal. Rules of Court, rule 3.1306(c) as a supplement to Plaintiff’s previously filed oppositions to Defendants’ Anti-SLAPP motion (Apr. 9, 2026), demurrer (Apr. 13, 2026), Code Civ. Proc., § 436 motion (Apr. 22, 2026), and opposition to Plaintiff’s motion for leave to file a second amended complaint (Apr. 23, 2026). It is **not** a substitute for those oppositions. It maps recurring defense positions to contradicting California authority using a single template: defense position (verbatim cite to the defense extraction record) → contradicting authority (pin cite) → defect class → disposition. Panel-counsel and insurer postures are addressed together where the record supports a unified regulatory and agency framing.

II. ISSUES PRESENTED (REBUTTED DEFENSE THEORIES)

- Whether “absolute” litigation-privilege and Code Civ. Proc., § 425.16 tropes erase threshold Code Civ. Proc., § 425.17(c) sequencing and Insurance Code / Title 10 duties (**No**).
- Whether a third-party claimant is excluded from the customer / regulatory audience protected by Code Civ. Proc., § 425.17(c)(2) and Title 10 (**No**; see concurrently filed Customer-Docctrine Supplemental).
- Whether demurrer four-corners analysis may import merits-stage disparagement and collateral-attack rhetoric (**No**; *City of Cotati v. Cashman* (2002) 29 Cal.4th 69).
- Whether a Code Civ. Proc., § 436 motion may operate as a backdoor anti-SLAPP or demurrer (**No**; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680).
- Whether MFL/SAC opposition may collapse *Park v. Board of Trustees* step-one gravamen into step-two probability language (**No**; *Park* (2017) 2 Cal.5th 1057; *Baral v. Schnitt* (2016) 1 Cal.5th 376).
- Whether panel counsel may disclaim the commercial channel for Code Civ. Proc., § 425.17(c) purposes while performing insurer-directed claim and investigation communications (**No**; *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984; Civ. Code, § 2330).

III. REGULATORY AND STATUTORY FLOOR

Insurance Code § 790.02 frames the Unfair Insurance Practices Act as regulating trade practices in the business of insurance without limiting protection to named insureds alone. Insurance Code § 790.03(h) enumerates unfair claims settlement practices; twelve subdivisions speak to “claimants” or parallel “insureds or claimants” phrasing, refuting any first-party-only gloss. Insurance Code § 790.10 delegates authority for the Fair Claims Settlement Practices Regulations. Ten CCR §§ 2695.1(a), (d), 2695.2(c), (s), (t), 2695.4(a), 2695.5, and 2695.7(a)–(d) define “claimant” to include third parties, impose duties on “all claims,” and require diligent investigation and timely written disposition. Code Civ. Proc., § 425.17(c) supplies a categorical commercial-speech sequencing rule (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12; *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309). Civil Code § 47(b)(2)–(3) and Bus. & Prof. Code, § 6128(a) mark limits on “petitioning” re-characterizations. Insurance Code § 700 et seq. conditions the privilege of licensure on compliance with those duties.

IV. ANTI-SLAPP MPA (APR. 9, 2026) — ROWS A-1 THROUGH A-9

Each row: **Defense position** → **Contradicting authority** → **Defect** → **Disposition**.

A-1. “Early dismissal of unmeritorious claims” policy rhetoric treated as dispositive of step one.

Club Members, 45 Cal.4th at pp. 316–324; *Simpson Strong-Tie*, 49 Cal.4th at pp. 28–32. *Mischaracterized*. Treat Code Civ. Proc., § 425.17 as structurally prior.

A-2. Two-step Code Civ. Proc., § 425.16 framework quoted to skip Code Civ. Proc., § 425.17 gateway. *Club Members* (sequencing); Code Civ. Proc., § 425.17(e) (no interlocutory appeal on exemption orders). *Omitted*. Address carve-out first.

A-3. “Collateral attack” / “unsupportable” labels on the FAC at step two. *City of Cotati v. Cashman*, 29 Cal.4th at p. 76 (demurrer standards govern pleading attacks); *Navellier v. Sletten* (2002) 29 Cal.4th 82, 89–92. *Overbroad*. Separate rhetoric from rule.

A-4. “Absolute” litigation privilege as blanket immunity. *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232, 1245–1252 (§ 47(b) coextensive with Code Civ. Proc., § 425.16(e) for certain channels); Civ. Code, § 47(b)(2)–(3) (express exceptions). *Overbroad*.

- 1 **A-5.** Probability / “meritless” characterization at step one. *Park*, 2 Cal.5th at pp. 1062–1063;
2 *Baral*, 1 Cal.5th at pp. 396–399. *Misinterpreted*.
- 3 **A-6.** *Flatley v. Mauro* (2006) 39 Cal.4th 299 and *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696
4 reserved for illegality / uncontroverted-record channels—not a license for generic disparage-
5 ment. *Mischaracterized* if invoked beyond their holdings.
- 6 **A-7.** Denial of customer / commercial-channel framing for insurer speech. *Simpson Strong-Tie*;
7 *JAMS*; *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664; Title 10, §§ 2695.2(c), (t).
8 *Misinterpreted*.
- 9 **A-8.** UCL / fraud predicates mislabeled as pure “petitioning.” *Rusheen v. Cohen* (2006) 37 Cal.4th
10 1048, 1061–1064 (distinction between protected petitioning and non-communicative or com-
11 mercial misconduct giving rise to liability). *Omitted* branch analysis.
- 12 **A-9.** Panel counsel as “litigation-only” actors outside Code Civ. Proc., § 425.17(c). *JAMS*, 1
13 Cal.App.5th at pp. 994–995 (commercial channel includes lawyers delivering the regulated
14 product); Civ. Code, § 2330 (principal–agent alignment for ostensible authority). *Misinter-*
15 *preted*.

16 **V. DEMURRER MPA (APR. 13, 2026) — ROWS D-1 THROUGH D-7**

- 17 **D-1.** Four-corners attack imports step-two “frivolous” rhetoric. *Cashman*, 29 Cal.4th at p. 76.
18 *Overbroad*.
- 19 **D-2.** Grounds framed as pure law questions while smuggling merits disparagement. *Cashman*, 29
20 Cal.4th at pp. 76–78. *Mischaracterized*.
- 21 **D-3.** Unfair competition / insurance-practice theories treated as categorically implausible on the
22 face of regulated duties. Ins. Code, §§ 790.03(h)(1), (h)(3), (h)(5); 10 CCR § 2695.7(d).
23 *Omitted* regulatory floor.
- 24 **D-4.** “Collateral attack” on underlying judgment used to obscure discrete new-duty theories. *Cash-*
25 *man*; *Baral* (leave standards). *Misinterpreted*.
- 26 **D-5.** Privilege and § 47(b) used to defeat fraud / investigation-duty allegations at pleading stage.
27 *Action Apartment*; Civ. Code, § 47(b)(3). *Overbroad*.
- 28 **D-6.** Investigation / denial communications treated as non-actionable “opinion.” *Egan v. Mutual*

1 *of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818–819; *Wilson v. 21st Century Ins. Co.* (2007)
2 42 Cal.4th 713, 720–721. *Mischaracterized.*

3 **D-7.** Agency / non-delegable flavor: insurer and retained counsel relationship to claim investiga-
4 tion. Civ. Code, § 2330; 10 CCR § 2695.7(d) (fair and objective investigation); *Engalla v.*
5 *Permanente Medical Group* (1997) 15 Cal.4th 951 (managed-care context for institutional
6 accountability principles). *Omitted* alternative framing.

7 **VI. CCP 436 MOTION (APR. 22, 2026) — ROWS S-1 THROUGH S-7**

8 **S-1.** Code Civ. Proc., § 436 used to restrike claims already analyzed under demurrer / anti-SLAPP
9 without honest narrowing. *PH II*, 33 Cal.App.4th at pp. 1682–1683. *Overbroad.*

10 **S-2.** “Strategic lawsuit” rhetoric applied to fraud and UCL theories governed by regulatory stan-
11 dards. *Rusheen*; Ins. Code, § 790.03(h). *Mischaracterized.*

12 **S-3.** Prior “on the merits” trial outcome conflated with whether carrier pre-denial conduct was
13 litigated. *Park* (gravamen). *Misinterpreted.*

14 **S-4.** Anti-SLAPP policy blocks imported wholesale. *Club Members*; *PH II*. *Omitted* sequencing.

15 **S-5.** Strike motion as surrogate for fact finding on investigation adequacy. 10 CCR § 2695.7(d);
16 *Wilson*, 42 Cal.4th at pp. 720–721. *Overbroad.*

17 **S-6.** Litigation privilege duplicates used to shield pre-trial representations to tribunal. Civ. Code,
18 § 47(b)(2)–(3); Bus. & Prof. Code, § 6128(a). *Misinterpreted.*

19 **S-7.** Equitable fraud-on-the-court boilerplate in lodged exhibits distinguished from defense-authored
20 misstatements of standard—but defense must not misapply *Flatley* to immunize investigation
21 misrepresentations. *Flatley*, 39 Cal.4th at pp. 316–322. *Mischaracterized* if over-read.

22 **VII. MFL/SAC OPPOSITION (APR. 23, 2026) — ROWS M-1 THROUGH M-4**

23 **M-1.** Step-two / probability language at step one. *Park*; *Baral*. *Misinterpreted.*

24 **M-2.** Service / procedural objections. **Conceded** as potentially curable; does not defeat threshold
25 sequencing once cured.

26 **M-3.** Lodging / formatting objections. **Conceded** as procedural; do not substitute for *Park* grava-
27 men analysis.

M-4. “Frivolous” anti-SLAPP fee threats used as merits proxy. Code Civ. Proc., § 425.16(c)(1); *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468; *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 871. *Overbroad* if invoked to skip step one.

VIII. CROSS-CUTTING — CUSTOMER DOCTRINE AND INSURANCE-CODE TABLE

Plaintiff incorporates by reference the analysis in the concurrently filed Supplemental Memorandum titled *Customer Doctrine under Code of Civil Procedure section 425.17(c)* (Customer-Docctrine Supplemental, lodged concurrently).

Provision	Black-letter point for omnibus use
Ins. Code § 790.02	Regulates trade practices in the business of insurance; no insured-only limitation stated.
Ins. Code § 790.03(h)	Sixteen unfair practices; “claimants” and “insureds or claimants” phrasing.
Ins. Code § 790.10	Delegation for Title 10 regulations.
Ins. Code § 11580(b)(2)	Duty-to-defend context informs tripartite relationships (notice parallel in RJN if reproduced).
Ins. Code § 791.13	Consumer comparison / unfair method context where pleaded.
10 CCR § 2695.2(c), (t)	“Claimant” includes third-party claimant.
10 CCR § 2695.7(b), (d)	Written denial bases; thorough, fair, objective investigation.
Code Civ. Proc., § 425.17(c)(1)–(2)	Commercial actor; commercial speech / delivery; triply disjunctive audience.

IX. APPLICATION TO CGC-25-631801

Defendants include CSAA Insurance Exchange and panel counsel. The omnibus matrix applies across calendars: threshold Code Civ. Proc., § 425.17(c) and Title 10 duties are common spine issues; demurrer and Code Civ. Proc., § 436 papers must not import merits disparagement as pleading-stage law; MFL/SAC opposition must not collapse anti-SLAPP steps. Plaintiff preserves all prior opposition arguments and adds only this structured contradiction map.

X. CONCLUSION AND RELIEF REQUESTED

For each hearing, Plaintiff requests that the Court (a) treat this filing as supplemental authority under Cal. Rules of Court, rule 3.1306(c); (b) reject defense over-reads flagged above; (c) deny or sustain objections consistent with the cited authorities; and (d) take judicial notice as requested in the concurrently amended RJN.

APPENDIX A. DEFENSE POSITION INVENTORY (REPRESENTATIVE ROWS)

Note: Line numbers refer to extraction.md in each defense bundle; confirm quotations against source.pdf before filing. See Merit Isolation Report on file with counsel.

ID	Pleading	Line	Quote (trunc.)	Contradicting authority	Class
801-A	Anti-SLAPP MPA	484	“The absolute litigation privilege ...”	Civ. Code, § 47(b)(2)–(3); <i>Action Apartment</i>	Overbroad
801-B	Anti-SLAPP MPA	1713	“Unsupportable ‘Collateral Attack’”	<i>Cashman</i> , 29 Cal.4th 69	Mischaracterized
801-C	Demurrer MPA	1834	“frivolous new lawsuit”	<i>Cashman</i> ; Code Civ. Proc., § 128.7(b) safe harbor vs. rhetoric	Rhetoric
801-D	CCP 436 MPA	676	“legally and factually unsupportable theory”	<i>Park</i> ; <i>PH II</i>	Overbroad
801-E	MFL dec-toc	1128	“No single ground has merit”	<i>Baral</i> (demurrer v. anti-SLAPP distinct roles)	Misinterpreted
801-F	MFL opposition	129	“legally unsupportable motion practice”	<i>Park</i> step separation	Rhetoric

APPENDIX B. AUTHORITIES CITED

1. Cal. Rules of Court, rules 3.1113, 3.1306(c).
2. Code Civ. Proc., §§ 128.7(b), 425.16, 425.17, 436, 904.1(a)(13).
3. Civ. Code, §§ 47(b), 2330.
4. Bus. & Prof. Code, § 6128(a).
5. Ins. Code, §§ 700 et seq., 790.02, 790.03(h), 790.10, 11580(b)(2), 791.13.
6. Cal. Code Regs., tit. 10, §§ 2695.1–2695.7.
7. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12.
8. *Club Members for an Honest Election v. Sierra Club* (2008) 45 Cal.4th 309.
9. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984.
10. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664.
11. *Flatley v. Mauro* (2006) 39 Cal.4th 299; *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696.
12. *Action Apartment Ass’n v. City of Santa Monica* (2007) 41 Cal.4th 1232.
13. *Rusheen v. Cohen* (2006) 37 Cal.4th 1048.
14. *City of Cotati v. Cashman* (2002) 29 Cal.4th 69.
15. *Navellier v. Sletten* (2002) 29 Cal.4th 82.

- 1 16. *Park v. Board of Trustees* (2017) 2 Cal.5th 1057.
- 2 17. *Baral v. Schnitt* (2016) 1 Cal.5th 376.
- 3 18. *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680.
- 4 19. *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468; *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 871.
- 5 20. *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809; *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713.
- 6 21. *Engalla v. Permanente Medical Group* (1997) 15 Cal.4th 951.

Dated: April 30, 2026



/s/ Franciscus Dylan Rosario

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